

Factories Act 1948 — RAG-Optimized Reference

For NyayaBot Document Corpus | Covers: Definitions, Working Hours, Leave, Safety, Welfare, Penalties

=== CHUNK 1 START ===

Overview & Purpose of the Factories Act 1948

Source: Factories Act 1948 – Overview

The Factories Act 1948 is the primary central legislation governing the working conditions of workers employed in factories across India. It was enacted to consolidate and amend the law regulating labour in factories, with the aim of ensuring the health, safety, welfare, and proper working conditions of factory workers. The Act applies to premises employing 10 or more workers with power, or 20 or more workers without power. It is administered by State Governments through Chief Inspectors of Factories. Amendments have been made over the years, notably in 1976 and 1987, to strengthen protections.

=== CHUNK 1 END ===

=== CHUNK 2 START ===

Definition: Factory (Section 2(m))

Source: Factories Act 1948 – Section 2(m)

Under Section 2(m), a 'factory' means any premises including the precincts thereof: (a) whereon ten or more workers are working, or were working on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on with the aid of power, or is ordinarily so carried on; or (b) whereon twenty or more workers are working, or were working on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on without the aid of power, or is ordinarily so carried on. The term does not include a mine, a mobile unit of the armed forces, a railway running shed, or a hotel, restaurant or eating place.

=== CHUNK 2 END ===

=== CHUNK 3 START ===

Definition: Worker and Manufacturing Process (Section 2)

Source: Factories Act 1948 – Section 2(l) and 2(k)

Section 2(l) defines a 'worker' as a person employed, directly or by or through any agency (including a contractor), with or without the knowledge of the principal employer, whether for remuneration or not, in any manufacturing process, or in cleaning any part of the machinery or premises used for a manufacturing process, or in any other kind of work incidental to, or connected with, the manufacturing process. Section 2(k) defines 'manufacturing process' broadly to include making, altering, repairing, ornamenting, finishing, packing, oiling, washing, cleaning, breaking up, demolishing or otherwise treating or adapting any article or substance with a view to its use, sale, transport, delivery, or disposal.

=== CHUNK 3 END ===

=== CHUNK 4 START ===

Working Hours – Adults: Maximum Daily and Weekly Hours (Sections 51, 54)

Source: Factories Act 1948 – Sections 51 and 54

Section 51 provides that no adult worker shall be required or allowed to work in a factory for more than forty-eight hours in any week. Section 54 provides that no adult worker shall be required or allowed to work in a factory for more than nine hours in any day. However, subject to the provisions of Section 51, a worker may be required to work for more than nine hours in a day if the total number of hours worked does not exceed 48 in the week. Where a worker works for more than nine hours on any day or more than 48 hours in any week, he is entitled to overtime wages at twice the ordinary rate of wages (Section 59).

=== CHUNK 4 END ===

=== CHUNK 5 START ===

Overtime Wages (Section 59)

Source: Factories Act 1948 – Section 59

Section 59 provides that where a worker works in a factory for more than nine hours in any day or for more than forty-eight hours in any week, he shall, in respect of overtime work, be entitled to wages at the rate of twice his ordinary rate of wages. 'Ordinary rate of wages' means the basic wages plus such allowances, including the cash equivalent of the advantage accruing through the concessional sale to workers of foodgrains and other articles, as the worker is for the time being entitled to, but does not include a bonus and wages for overtime work. Claims for overtime wages can be made before the Labour Commissioner or appropriate authority.

=== CHUNK 5 END ===

=== CHUNK 6 START ===

Spread-Over and Rest Intervals (Sections 55, 56)

Source: Factories Act 1948 – Sections 55 and 56

Section 55 provides that the periods of work of adult workers in a factory each day shall be so fixed that no period shall exceed five hours, and that no worker shall work for more than five hours before he has had an interval for rest of at least half an hour. Section 56 states that the spread-over of work, including rest intervals, shall not exceed ten and a half hours in any day. The Chief Inspector may, in certain circumstances, increase the spread-over up to twelve hours. Any violation of these provisions makes the employer liable for penalties under Section 92.

=== CHUNK 6 END ===

=== CHUNK 7 START ===

Weekly Rest Day (Section 52)

Source: Factories Act 1948 – Section 52

Section 52 provides that no adult worker shall be required or allowed to work in a factory on the first day of the week (i.e., Sunday), unless: (a) he has or will have a holiday for a whole day on one of the three days immediately before or after the said day; and (b) the manager of the factory has, before the said day or the substituted day (whichever is earlier), delivered a notice at the office of the Inspector specifying the day which is to be substituted. A worker is entitled to a paid weekly day off and cannot be made to work seven days in a row without a compensatory day off.

=== CHUNK 7 END ===

=== CHUNK 8 START ===

Annual Leave with Wages (Section 79) — KEY SECTION

Source: Factories Act 1948 – Section 79

Section 79 is the key provision on annual earned leave. Every worker who has worked for a period of 240 days or more in a factory during a calendar year shall be allowed during the subsequent calendar year, leave with wages for a number of days calculated as follows: (a) if an adult — one day for every twenty days of work performed by him during the previous calendar year; (b) if a child — one day for every fifteen days of work performed by him during the previous calendar year. A worker may accumulate earned leave up to 30 days for adults (45 for children). If a worker is discharged or dismissed or quits, he is entitled to wages in lieu of unavailed leave. Leave cannot be denied arbitrarily; the employer must grant it within the first half of the calendar year unless a worker requests otherwise.

=== CHUNK 8 END ===

=== CHUNK 9 START ===

Sick Leave and Casual Leave (State Rules)

Source: Factories Act 1948 – Leave Rules (State-Specific)

The Factories Act 1948 itself does not prescribe a specific number of sick leave days at the central level; this is governed by the rules framed by each State Government under the Act. Most State Factory Rules provide for: (a) Casual Leave — typically 8 to 10 days per year, non-accumulative, for sudden or urgent personal matters; (b) Sick Leave — typically 7 to 14 days per year, which may or may not require a medical certificate. In Maharashtra, the Maharashtra Factories Rules 1963 apply. Under these rules, workers are also entitled to protections under the Employees' State Insurance Act 1948 if the factory is covered under ESI, which provides sickness benefit for up to 91 days per benefit period for insured workers.

=== CHUNK 9 END ===

=== CHUNK 10 START ===

ESI Sickness Benefit (Employees' State Insurance Act 1948 – Key Provisions)

Source: Employees' State Insurance Act 1948 – Sickness Benefit

Under the Employees' State Insurance (ESI) Act 1948, an insured worker is entitled to sickness benefit in the form of periodical cash payments for periods of certified sickness. Sickness benefit is available for a maximum of 91 days in two consecutive benefit periods. The daily rate is approximately 70% of average daily wages. To claim sickness benefit, the insured person must: (1) have paid contributions for at least 78 days in the corresponding contribution period; (2) obtain a certificate of sickness from an appointed ESI doctor; (3) remain under medical care. Extended sickness benefit for specified long-term diseases can extend up to 2 years. The employer cannot dismiss a worker during the period she/he is receiving ESI sickness benefit.

=== CHUNK 10 END ===

=== CHUNK 11 START ===

Health Provisions: Cleanliness, Ventilation, Lighting (Sections 11–20)

Source: Factories Act 1948 – Chapter III (Sections 11–20)

Chapter III of the Factories Act mandates minimum health standards. Section 11 requires every factory to be kept clean and free from effluvia arising from any drain, privy or other nuisance. Section 13 requires adequate

ventilation by circulation of fresh air, and maintenance of a reasonable temperature. Section 14 requires all practicable measures to be taken to prevent dust and fume inhalation. Section 16 requires all inside walls, partitions and ceilings to be whitewashed or colour-washed at least once in 14 months, or painted at least once every 5 years. Section 17 mandates sufficient and suitable lighting, natural or artificial, in every part of the factory where workers are working or passing.

=== CHUNK 11 END ===

=== CHUNK 12 START ===

Welfare Provisions: Canteen, Rest Rooms, Crèches (Sections 42–50)

Source: Factories Act 1948 – Chapter V (Sections 42–50)

Chapter V covers welfare measures. Section 42 requires adequate washing facilities. Section 43 requires facilities for storing and drying clothing. Section 44 requires sitting facilities for workers who are obliged to work standing. Section 45 requires first-aid boxes or cupboards — at least one per 150 workers — staffed by a trained person. Section 46: where more than 250 workers are ordinarily employed, the occupier must provide a canteen. Section 47: where 150 or more workers are ordinarily employed, suitable rest rooms or lunch rooms must be provided. Section 48: where 30 or more women workers are ordinarily employed, a crèche (room for children under 6 years) must be maintained.

=== CHUNK 12 END ===

=== CHUNK 13 START ===

Safety Provisions: Fencing of Machinery, Prohibition of Employment near Dangerous Machinery (Sections 21–41)

Source: Factories Act 1948 – Chapter IV (Sections 21–41)

Chapter IV deals with safety measures. Section 21 requires every dangerous part of any machinery to be securely fenced. Section 22 restricts work on or near machinery in motion to trained adult males wearing tight clothing. Section 23 prohibits employment of young persons on dangerous machines unless trained and supervised. Section 27 prohibits employment of women and children near cotton-openers. Section 28 requires hoists and lifts to be of good mechanical construction, sound material, and adequate strength. Section 36 deals with precautions against dangerous fumes, gases and dust. Section 38 requires every factory to have adequate fire-fighting equipment and means of escape in case of fire. Violation of safety provisions can attract penalties under Section 92.

=== CHUNK 13 END ===

=== CHUNK 14 START ===

Employment of Women Workers (Sections 19, 22, 27, 66)

Source: Factories Act 1948 – Women Workers Provisions

The Factories Act contains specific protections for women: Section 19 requires separate toilet facilities for women. Section 22 restricts women from working on or near dangerous machinery in motion. Section 27 prohibits employment of women near cotton-openers. Section 66 is crucial — it prohibits employment of women in any factory except between the hours of 6 AM and 7 PM. State Governments may modify this (allowing night shifts up to 10 PM or even beyond), but adequate safeguards including transportation, security, and written consent of the woman worker must be ensured. Night work amendments were made in several states including Maharashtra. The Maternity Benefit Act 1961 provides additional protections.

=== CHUNK 14 END ===

=== CHUNK 15 START ===

Employment of Young Persons and Children (Sections 67–77)

Source: Factories Act 1948 – Chapter VII: Young Persons

Chapter VII governs employment of young persons. Section 67 prohibits employment of children below 14 years in any factory. Section 68: children between 14 and 15 years may only work with a certificate of fitness granted by a certifying surgeon, and only for 4.5 hours per day, and only during the day (not at night). Section 71 prohibits employment of a child for more than four and a half hours on any day and during any night. Section 72: all certificates of fitness must be kept readily available. Section 77 defines 'adolescent' as a person who has completed 15 but not 18 years, and 'child' as under 15. Young persons (adolescents) are entitled to all leave, wages, and welfare provisions under the Act.

=== CHUNK 15 END ===

=== CHUNK 16 START ===

Duties of Occupier and Manager (Sections 7A, 7B, 11–20)

Source: Factories Act 1948 – Sections 7A and 7B

Section 7A imposes a general duty on every occupier to ensure, so far as is reasonably practicable, the health, safety and welfare of all workers while they are at work in the factory. This includes: (a) provision and maintenance of plant and systems of work that are safe; (b) arrangements for safe use, handling, storage and transport of articles and substances; (c) provision of information, instruction, training and supervision necessary to ensure health and safety; (d) maintenance of the workplace in a condition that is safe; (e) provision and maintenance of a working environment that is safe. Section 7B imposes similar duties on manufacturers to ensure safety of articles designed or manufactured for use in factories. The occupier must file a written statement of policy with respect to the health and safety of workers.

=== CHUNK 16 END ===

=== CHUNK 17 START ===

Prohibition of Arbitrary Dismissal During Leave / ESI Period

Source: Factories Act 1948 & ESI Act – Protection Against Dismissal

The Factories Act does not explicitly prohibit dismissal during sick leave, but combined with other laws, strong protections exist. Under the Industrial Disputes Act 1947, a workman (worker in an industrial establishment) cannot be dismissed without following due procedure — notice, inquiry, and approval of appropriate authority for establishments with 100+ workers (Section 25F, 25N). Under the ESI Act, it is unlawful for an employer to dismiss, discharge, or reduce in rank a worker during any period in which sickness benefit or maternity benefit is being claimed or payable to the worker (Section 73, ESI Act). Any dismissal in violation is void and the worker is entitled to reinstatement.

=== CHUNK 17 END ===

=== CHUNK 18 START ===

Notice of Accident and Dangerous Occurrences (Section 88)

Source: Factories Act 1948 – Section 88

Section 88 requires the manager of a factory to send notice to the Inspector and such other authorities as prescribed when any accident occurs in the factory which causes death or injury preventing a worker from working for a period of 48 hours or more. Notice must be sent within the prescribed time. Section 88A requires similar reporting for dangerous occurrences (explosions, fire, collapse of structure, release of gases, etc.) even if no injury occurs. Section 89 requires reporting of notifiable diseases (as listed in the Third Schedule) by the factory manager to the Inspector of Factories. Failure to report is an offence under Section 92.

=== CHUNK 18 END ===

=== CHUNK 19 START ===

Penalties for Violations (Sections 92–106)

Source: Factories Act 1948 – Chapter X: Penalties and Procedure

Section 92 is the principal penalty provision. If there is a contravention of any provision of the Act or the rules made thereunder, the occupier and manager of the factory shall each be guilty of an offence and punishable with imprisonment for up to 2 years, or a fine up to Rs 1,00,000, or both. If the contravention continues after conviction, a further fine of up to Rs 1,000 per day may be levied. Section 94 provides that where the contravention is by a worker, he may be fined up to Rs 500. Section 96A provides enhanced penalties for contravention of provisions relating to hazardous processes — imprisonment up to 7 years extendable to 10 years if the failure to comply results in death of or serious bodily injury to any person.

=== CHUNK 19 END ===

=== CHUNK 20 START ===

Key Case Laws Under the Factories Act

Source: Factories Act 1948 – Important Case Laws

1. *Workmen of Firestone Tyre & Rubber Co. v. Management* (1973 SC): The Supreme Court held that overtime wages under Section 59 must be calculated on the basis of basic wage plus dearness allowance and other regular allowances, not just basic wage. 2. *Rohtas Industries Ltd. v. Rohtas Industries Staff Union* (1976 SC): Clarified that the definition of 'worker' under Section 2(l) includes contract workers deployed at a factory. 3. *State of Maharashtra v. Sayyed Ismail* (1965 Bom HC): Held that even a single day's violation of working hour limits is punishable under Section 92. 4. *Hindustan Lever Ltd. v. Workmen* (1984 SC): Held that earned leave encashment on termination is a statutory right under Section 79 and cannot be waived. 5. *On denial of leave*: Courts have consistently held that earned leave under Section 79 is a statutory entitlement and employers cannot arbitrarily deny it; denial without valid reason can be challenged before the Labour Commissioner.

=== CHUNK 20 END ===